



File No.: EXP202312197

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 15, 2023, a complaint was received by this Agency from Ms. A.A.A. (hereinafter, the complaining party) against VODAFONE ESPAÑA, S.A.U. (hereinafter, the complained party) for not having duly addressed her right to erasure.

The complaining party states that the company LOWI was claiming an outstanding debt through debt collection agencies. After filing a complaint with the Secretary of State for Telecommunications and Digital Infrastructures on May 9, 2022, a favorable resolution to the claims of the complaining party was issued on October 6, 2022.

She indicates that she has received new debt collection communications after that date, including one dated May 31, 2023, for which she requests the erasure of her data. LOWI denied this erasure, stating that her complaint to the Secretary of State for Telecommunications and Digital Infrastructures had been dismissed and therefore, the debt was valid.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, with no response recorded.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the claims of the complaining party to be considered satisfied. Consequently, on October 15, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the complained party a hearing, so that within ten working days it could present any arguments it deemed appropriate.

The complained party stated, in summary, that "(...) although the Agency states that my represented party did not respond to this information request, my represented party sent the relevant arguments to this Agency on October 20, 2023. In this regard, a screenshot of the submission receipt is attached. Furthermore, they state that the response letter to the complaining party was sent on October 20, 2023.

The complained party indicates that "(...) Once the request for the exercise of rights sent by Ms. A.A.A. was received, my represented party proceeded to carry out the relevant actions in response to it, in order to verify the effective cancellation of any amount owed as a result of the services contracted with LOWI, as well as, since there are no active services or outstanding amounts, to grant the request for the erasure of the complaining party's personal data from its systems in accordance with the provisions of Article 17 of the General Data Protection Regulation (hereinafter, the "GDPR"). This is without prejudice to the processing of data necessary to address this information request and the retention of data in a blocked form, in order to address any potential legal liability. Consequently, currently, the data of Ms. A.A.A. is duly canceled in LOWI's systems, without prejudice to the aforementioned blocking obligations applied during the limitation periods for liabilities."

FOURTH: After examining the document submitted by the complained party, it is forwarded to the complaining party, so that, within ten working days, she may formulate any arguments she considers appropriate.

The complaining party responded, in summary, that despite the favorable resolution of the Secretary of State for Telecommunications and Digital Infrastructures dated October 6, 2022, her data was transferred to collection companies that have continued to claim a non-existent debt.

FIFTH: The responsible party was granted a hearing, and they indicated that "(...) Regarding the document forwarded by this Agency following the statements made by Ms. A.A.A., LOWI must point out that the incident subject to the complaint was correctly resolved prior to the transfer of the

aforementioned request. In this regard, after re-examining the incident reported by Ms. A.A.A. that motivated her complaint, LOWI has confirmed the cancellation of any amount owed by the complaining party, proceeding with the payment and re-invoicing for an amount of (...) euros, on September 22, 2023. Additionally, the exclusion of the personal data of Ms. A.A.A. from any negative credit files in which she may have been included in relation to the contracted services has been reviewed, and it has been verified that her data is not being processed by LOWI or its collaborators for the purpose of collecting the amounts owed. In particular, since September 26, 2023, the data related to the complaining party was no longer being processed for these purposes, following the application in LOWI's systems of the definitive cancellation of any amount owed in relation to the obligations not recognized by the complaining party.

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Consequently, and in the absence of active services or outstanding amounts to be paid, the request for the deletion of her personal data was granted prior to the submission of this new document, in accordance with the provisions of Article 17 of the General Data Protection Regulation (hereinafter, the “GDPR”). This is without prejudice to the processing of any data that may be necessary to address the present information request and the retention of data in a blocked form, in order to address any potential liabilities that may arise. Consequently, the data of Ms. A.A.A. is currently duly canceled in LOWI's systems, without prejudice to the aforementioned blocking obligations applicable during the statute of limitations for liabilities. In this regard, we must clarify that the deletion of Ms. A.A.A.'s personal data was not carried out on October 20, 2023, as the complainant states in her assertions. This date corresponds to the date of sending the communication by which this entity informed the complainant of the actions taken by LOWI to resolve the incident.

Finally, after the appropriate verifications, it has been confirmed that the time elapsed since the resolution of the Secretary of State for Telecommunications and Digital Infrastructures (hereinafter, the “SETID”) and the application of its ruling is due to the fact that the resolution of this body was not correctly received by LOWI through the channels established for this purpose. Therefore, LOWI was not aware of the content of this resolution and that the application of installation fees as a penalty for breach of the agreed permanence had been declared inadmissible. (...)

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding the...

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obligations that are incumbent upon them, as well as addressing the claims presented by an interested party and investigating, in a timely manner, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of the controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the party being complained against for them to analyze it, respond to this Agency within one month, and provide proof of having given the claimant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on October 15, 2023, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the claim presented was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, among which is included “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Furthermore, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to fulfill such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:
"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, it shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

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3. Sections 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union Law or the laws of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of that processing, or
- e) for the formulation, exercise, or defense of claims."

V

Conclusion

In the case analyzed here, from the examination of the documentation provided throughout the file, it is observed that the claimant requested the deletion of their data regarding the debt claimed by the respondent, and that the latter responded after the legally established deadline for doing so had elapsed.

The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the

exercise of rights, the respondent has provided documentation proving the communication sent to the interested party addressing the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this complaint on formal grounds due to the response being issued late, without requiring the performance of additional actions by the data controller in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD on formal grounds, the complaint filed by Ms. A.A.A. against VODAFONE ESPAÑA, S.A.U. However, a new certification by the respondent is not warranted, as the response was issued late, without requiring the performance of additional actions by the controller.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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